

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)

Present:

Mr. Justice Ashish Ranjan Das

And

Mr. Justice Fahmida Quader

WRIT PETITION NO. 364 OF 2017.

IN THE MATTER OF:

An application under Article 102 of the Constitution
of the People's Republic of Bangladesh.

-AND -

IN THE MATTER OF:

Md. Nurul Haque

.....Petitioner

-VS-

Secretary, Ministry of Local Land and others

.....Respondents

Mr. Md. Moinul Islam, Advocate

.....For the Petitioner

Mr. Md. Saiefuddin Khaled, D.A.G

....For the respondents

Heard on. 22.08.2024

Judgment on: 28.08.2024.

Fahmida Quader, J.

This Rule Nisi, at the instance of the application filed under Article 102(2) of the Constitution, by the petitioner Nurul Haque issued on 11.01.2017, was in the following terms-

“Let Rule Nisi be issued calling upon the respondents to show cause as to why the impugned order under memo No. 31.60.9089.000.05.003.14-1483(4) dated 01.09.2016 issued under the signature of the respondent No. 5 Assistant Commissioner (Land) Sunamgonj directing the surveyor office

Assistant and Union land assistant officer to hand over all ‘the records of Aukkay Nagar, Mouza under J.L No. 13 of Sunamgonj Sadar Upazilla as contained in Annexure-D to the writ petition should not be declared to have been done without lawful authority and is of no legal effect and as to why they should not be directed to allow the inhabitants of Aukynagar Mouza under J.L. No. 13 under Sunamgonj District to be under SAdar Upazilla Sunamgonj and/or pass such other or further order or orders as to this court may seem fit and proper.”

The key assertions made in the petition, leading to the issuance of the Rule Nisi, are as follows:-

The petitioner is the rightful owner and resident of land within Aukkaynagar Mouza. From its inception, the Aukkaynagar Mouza was part of Sunamgonj Sadar Upazila. However, with the creation of Bishambarpur Police Station, 60 mouzas, including Aukkaynagar, were reassigned by a notification dated June 23,1967. Given that the inhabitants of Aukkynagar Mouza are more closely associated with Sunamgonj Sadar, the Deputy Commissioner of Sunamgonj instructed the Assistant Commissioner (land) of Bisbombarpur to transfer the records of the land under Aukkynagar Mouza to the Sadar Upazilla Sunamgonj for better convenience in collecting revenue, rent etc. Sadar Upazilla Sunamganj issued an office order dated 28.05.1990. Consequently, the Assistant Commissioner (Land) of Bishombarpur directed the Tohshilder of Palash Tohshil office to transfer the records of land of Aukkynagar Mouza to Sadar Upazilla, Sunamgonj. As a result, the Land Registry office and

Revenue Rent Collection office of Aukkynagar Mouza remain under Sunamgonj Sadar Upazilla.

In 2009, the petitioner submitted an application to the Member of the parliament Sunamgonj-4 seeking to include the Akkynagar Mouza within the Sadar Upzilla for the purpose of R.S operation. Based on the report from the Union Land Assistant Officer of Sadar, Sunamgonj, the Deputy Commissioner of Sunamgonj, issued office orders dated June 17,2009, and October 10, 2009, directing the Zonal Settlement officer, Sylhet Zone, to transfer the office records for R.S operation of Aukkynagar Mouza to Sadar in the public interest.

Several inquires were conducted by respondent No. 5, The Assistant Commissioner (Land), and others, Who in their report opined that the Aukkynagar Mouza should have remain under Sadar Upzilla for the benefit of the public. Despite of all these reports and previous orders, the Assistant Commissioner (Land), respondent no. 5, issued the impugned order on October 1, 2016, directing his surveyor or and Union Land Assistant to transfer the records of the land under Aukkynagar Mouza to Bishombarpur Upazilla. In this context, the petitioner filed this writ petition challenging the aforementioned order dated October 1, 2016.

Mr. Md. Mainul Islam, the learned Advocate for the writ petitioner, after presenting the petition, the impugned letter and other relevant materials on records, advanced following arguments:-

Akkynagar Mouza is located one Kilometer far from Sunamgonj Sadar, while Bishamborpur is approximately 15 kilometers far from Aukkynagar, situated in a remote and rural area. This considerable distance makes it significantly

much more difficult for the inhabitants of Aukkynagar to travel to Bishomparpur for land registration and payment of rent, revenue etc. Therefore, the residents of Aukkynagar Mouza are typically associated with Sunamgonj Sadar due to better communication and convenience.

In his elaboration, the learned counsel further contends that by the order of Deputy Commissioner of Sunamgonj, dated May 28, 1990, the land records of Aukkynagar Mouza were transferred back to the Sadar and since then, these records have been under the custody of Sadar Upazilla, Sunamgonj for the purpose of smooth office dealings for benefiting both the respondents and the inhabitants of Aukkynagar Mouza. Consequently, this Rule Nisi is likely to be absolute, and the impugned officer order issued by the respondent No.5 on September 1, 2016, directing the transfer of land records of Aukkynagar Mouza from Sadar Upazilla Sunamganj to Bishombarpur, is liable to be declared illegal having been enacted without lawful authority.

At the time of hearing of this Rule Nisi, Mr. Md. Saiefuiddin Khaled, the learned Deputy Attorney General, frankly conceded that several inquiries have been conducted by respondent No.5 and others and based on their inquiry reports, the Deputy Commissioner Sunamgonj through his orders dated May 28,1990, June 17, 2009, and October 10,2009 directed the transfer of land records under Aukkynagar to Sadar for public interest. Hence the learned Deputy Attorney General Concurs.

We have heard the learned Advocates for the respective parties and thoroughly examined the writ petition, Annexures and other materials on record. The petitioner filed this writ petition challenging the legality of the order dated September 01, 2016 issued by respondent No.5,the Assistant

Commissioner (Land), of Sunamgonj, Sadar. This letter annexed as Annexure-D, indicates that Md. Mamun Khandkar, Assistant Commissioner (Land), issued the directive to the surveyor, Office Assistant and Union Land Assistant officer to take necessary action in order to hand over all the records of Auknaynagar Mouza from Sunamganj Sadar to Bishombarpur Mouza. Surprisingly, the same individual, i.e. Md. Mamun Khandkar, Assistant commissioner (Land), of Sunamganj had previously issued a similar letter to the Upazilla Nirbahi Officer, Sadar, Sunamgonj, on July 2, 2015. The contents of the letter are very much crucial for decision making regarding the Rule, which reads as follows :-

“উপর্যুক্ত বিষয় ও সূত্রোক্ত স্মারকের পরিপ্রেক্ষিতে সুনামগঞ্জ সদর উপজেলার অন্তর্গত অক্ষয়নগর মৌজার রেকর্ডপত্র বিশ্বম্ভরপুর উপজেলা থেকে সুনামগঞ্জ সদর উপজেলার অধীনে আনয়নের বিষয়ে ইউনিয়ন ভূমি সহকারী কর্মকর্তা, সুনামগঞ্জ সদর ২৯/৬/২০১৫ তারিখের ৩৪৪ নং স্মারকে প্রতিবেদন দাখিল করেন। প্রাপ্ত প্রতিবেদন দৃষ্টে দেখা যায় যে, ১৩ নং জেএলস্টিত অক্ষয়নগর মৌজাটি সুনামগঞ্জ সদর উপজেলা হতে ২ (দুই) কিলোমিটার এবং বিশ্বম্ভরপুর উপজেলা হতে ১৩ (তের) কিলোমিটার দূরে অবস্থিত। অক্ষয়নগর মৌজার জনসাধারণের বিশ্বম্ভরপুর হতে সুনামগঞ্জ সদর উপজেলায় যাতায়াত ব্যবস্থা ভাল এবং সাধারণ জনগন মৌজাটির কার্যক্রম সুনামগঞ্জ সদর উপজেলার আওতাধীন থাকার পক্ষে মতামত দিয়েছেন। বর্তমানে ভূমি সংক্রান্ত ব্যবস্থাপনা কার্যক্রম সুনামগঞ্জ সদর উপজেলাধীন এবং ভূমি সংক্রান্ত চলমান জরীপ কার্যক্রম বিশ্বম্ভরপুর উপজেলাধীন পরিচালিত হচ্ছে। জনগনের চাহিদা অনুযায়ী অক্ষয়নগর মৌজার ব্যবস্থাপনা ও জরীপ কার্যক্রম সুনামগঞ্জ সদর উপজেলার আওতায় পরিচালিত হলে জনগনের সুবিধা হবে বলে প্রতীয়মান হয় মর্মে ইউনিয়ন ভূমি সহকারী কর্মকর্তা, সুনামগঞ্জ সদর প্রতিবেদনে উল্লেখ করেন।

উপর্যুক্ত প্রতিবেদনের সহিত নিম্নস্বাক্ষরকারী একমত পোষণকরে পরবর্তী প্রয়োজনীয় ব্যবস্থা গ্রহণের জন্য এসাথে প্রেরণ করা হলো।”

This letter was issued after considering various inquiry reports and the greater interest of the inhabitants of Aukkynagar Mouza. Therefore after issuance of this letter, the issuance of the impugned letter by the same person, which reverses the decision of his previous letter, cannot be considered proper and legal.

A careful scanning of the record reveals that, in response to the requests of the villagers of Aukkynagar Mouza, several inquiries were conducted. Based on these reports multiple letters were issued in different dates, directing the transfer of records of Aukkynagar Mouza to Sadar. Annexure-A shows that a letter was issued by Deputy commissioner of Sunamganj to the Assistant Commissioner (Land), of Bishamborpur on May 28, 1990, stating that

“উপজেলা নির্বাহী অফিসার, সুনামগঞ্জ সদরের সূত্রে বর্ণিত স্মারকে দাখিলকৃত প্রতিবেদনে দেখা যায়, বিষয়ে উল্লেখিত মৌজা সমূহ সুনামগঞ্জ সদর উপজেলার রঙ্গারচর ইউনিয়নে অবস্থিত। এ মৌজাগুলোর যাবতীয় রেকর্ডপত্র বিশ্বম্ভরপুর উপজেলায় নিয়ন্ত্রণাধীন থাকায় ভূমি উন্নয়ন কর আদায়, স্বত্ব মোকদ্দমা পরিচালনায় ও খাসজমি বন্দোবস্ত ইত্যাদি কাগজ সুনামগঞ্জ সদর উপজেলা রাজস্ব প্রশাসনে জটিলতার সৃষ্টি হচ্ছে।

উপরোক্ত অবস্থায় অক্ষয়নগর ও ফেটার গাঁও মৌজার যাবতীয় রেকর্ডপত্র সেসন্স আর ও আর, পি, আর আর, রেজিস্ট্রার (II), পিও ৯৬/৭২ ও ৯৮/৭২ সংক্রান্ত রিটার্ণ, ভিপি তারিখ ইত্যাদি অবিলম্বে উপজেলার ভূমি অফিস, সুনামগঞ্জ সদরের নিকট হস্তান্তর করার জন্য নির্দেশ প্রদান করা হইল”.

In compliance with this directive from the DC, the Assistant Commissioner (Land), Bishombarpur issued a letter on October 08, 1990 (Annexure-A-1).

Subsequently, the Deputy Commissioner of Sunamganj issued two additional letters dated 17.06.2009 and 10.09.2009 directing the Zonal Settlement Officer, Sylhet zone to take necessary action to transfer the recodes to the Sunamganj Sadar Upazilla from Bishombarpur for the purpose of preparing R.S. Records (Annexure B-B1). Ignoring the above decisions and directives from higher officer i.e. Deputy Commissioner, the Assistant Commissioner (Land), of Sunamganj Sadar, Sunamganj had no authority to issue impugned letter dated September 01, 2016.

In the result the Rule is made absolute.

The impugned order dated 01 October, 2016 issued by the respondent No-5, Assistant Commissioner (Land), Sunamganj is declared to have been done without lawful authority.

The respondents are directed to allow the inhabitants of Aukkyanagar Mouza under J.L. No.13 under Sunamganj District to be under Sadar Upazilla Sunamganj.

Should any records have already been transferred to Bishombarpur, the respondents are instructed to promptly return those records to Sadar, Sunamganj.

Ashish Ranjan Das, J.

I agree.

Anower
B.o